

Sri Shivalingaiah vs Smt K Bhuwaneshwari on 31 October, 2023

Author: Mohammad Nawaz

Bench: Mohammad Nawaz

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NC: 2023:KHC:38606
CRL.A No. 475 of 2022

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 31ST DAY OF OCTOBER, 2023

BEFORE
THE HON'BLE MR JUSTICE MOHAMMAD NAWAZ
CRIMINAL APPEAL NO. 475 OF 2022

BETWEEN:

SRI SHIVALINGAIAH
S/O LATE DODDAPUTTASHETTY,
AGED ABOUT 53 YEARS,
R/O NO. 35/1,
EMPLOYEES HOUSING COLONY,
SUBHASHNAGAR,
MANDYA - 571401.

...APPELLANT

(BY SRI. P.S. MALIPATIL., ADVOCATE)
AND:

Digitally signed
by GAYATHRI P
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Location: High
Court of
Karnataka

1. SMT. K. BHUWANESHWARI (divorced)
W/O SHIVALINGAIAH,
AGED ABOUT 53 YEARS,

R/O NO 35/1, EMPLOYEES HOUSING COLONY,
SUBHASHNAGAR,
MANDYA - 571401.
2. SMT. SAVITHA
W/O SHIVALINGAIAH,
AGED ABOUT 37 YEARS
NO. 411, MAHADESHWARA NILAYA, KENGERI,
BENGALURU - 560060.
3. SMT. RAJESHWARI,

W/O MANCHAIHA,
AGEED ABOUT 58 YEARS,
NO. 411, MAHADESHWARA NILAYA, KENGRI,
BENGALURU - 560060.

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4. SRI HARISH,
S/O MANCHAIHA,
AGED ABOUT 34 YEARS,
NO.411, MAHADESHWARA NILAYA, KENGRI,
BENGALURU - 560060.

...RESPONDENTS

(BY SMT. SUMANGALA A. SWAMY.,ADVOCATE, FOR R1;
R2 TO R4 SERVED)

THIS CRL.A FILED U/S 378 OF CR.P.C. PRAYING TO SET ASIDE
THE JUDGMENT AND ORDER DATED 30.11.2020 PASSED BY THE V
ADDITIONAL DISTRICT AND SESSIONS JUDGE, MANDYA IN
CRL.A.NO.165/2019 AND CONFIRM THE JUDGMENT AND ORDER
DATED 30.01.2019 PASSED BY THE ADDITIONAL CIVIL JUDGE
(JR.DN.) AND J.M.F.C., MANDYA IN C.C.NO.756/2011.

THIS APPEAL, COMING ON FOR ORDERS, THIS DAY, THE
COURT DELIVERED THE FOLLOWING:

JUDGMENT

This appeal is preferred by accused No.1 against his conviction and sentence passed by the Court of V Additional District and Sessions Judge, Mandya in Crl.A.No.165/2019 dated 30.11.2020, whereby he is convicted and sentenced for the offence punishable under Sections 420, 494 and 506 of IPC.

2. The matter arises out of a private complaint filed under Section 200 of Cr.P.C. by the wife of the appellant. Her marriage with the appellant was performed on 26.05.1993. The complaint was filed against the appellant / husband and four others alleging offences punishable under Sections 420, 494 NC: 2023:KHC:38606 and 506 read with Section 34 of IPC. The Trial Court by its judgment dated 30.01.2019 passed in C.C.No.756/2011 was pleased to acquit all the accused of the offences charged against them. Feeling aggrieved, respondent No.1 / wife of the appellant preferred Crl.A.No.165/2019 on the file of the Court of V Additional District and Sessions Judge, Mandya. The learned Sessions Judge vide impugned judgment dated 30.11.2020 convicted the appellant / accused No.1 for the offence punishable under Sections 420, 494 and 506 of IPC and sentenced him.

3. The learned counsel for the appellant has filed a memo stating that in MFA.No.345/2018 preferred by respondent No.1 \ wife, the parties have entered into a compromise, wherein she agreed to withdraw the complaint filed against her husband for the offence punishable under

Sections 420, 494 and 506 of IPC. He would therefore, contend that the entire dispute being private in nature arising out of matrimonial relationship, the appeal may be allowed by quashing the entire criminal proceedings initiated against the appellant.

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4. The learned counsel for appellant has filed a copy of the order passed in MFA.No.345/2018. He submits that as per the terms of compromise, the appellant has paid a sum of Rs.5,00,000/- towards full and final settlement of the claim of respondent No.1 / wife. Copies of the demand drafts for a total sum of Rs.5,00,000/- drawn in favour of respondent No.1 are also produced along with the memo.

5. The learned counsel Smt. Sumangala A. Swamy appearing for respondent No.1 submits that the parties have settled the dispute and acknowledges the receipt of Rs.5,00,000/- by respondent No.1, towards full and final settlement of her claim. She therefore, submits that the matter may be closed to meet the ends of Justice.

6. I have perused the order passed in MFA.No.345/2018 dated 13.07.2023. The said appeal arises out of the judgment and decree passed in favour of the appellant herein seeking dissolution of marriage against respondent No.1, under Sections 13(ia) and 13(ib) of the Hindu Marriage Act, 1955. The said appeal preferred by the wife was disposed of in terms of the compromise / settlement arrived between the NC: 2023:KHC:38606 parties. Para Nos.4 and 5 of the said judgment are extracted hereunder:

4. During the course of hearing, learned counsel for the parties have arrived at the following consensus:

(1) The husband shall pay Rs.5,00,000/-

towards full and final settlement of claim of the wife within two months from this date.

(2) If such payment is made, the wife shall take necessary steps to withdraw the complaint filed against the husband for the offences punishable under Sections 420, 494 and 506 of the Indian Penal Code.

5. In view of the aforesaid compromise arrived at between the parties, the judgment and decree dated 28.10.2017 passed by the Prl. Senior Civil Judge, Mandya in M.C.No.35/2005 is modified to the extent mentioned above.

7. It is useful to refer to the judgment of the Hon'ble Apex Court in Ramgopal and another V/s. State of Madhya Pradesh reported in 2022, Crl. Law Journal 2801, para 19 of the said judgment is extracted here under:

NC: 2023:KHC:38606 We thus sum-up and hold that as opposed to Section 320 Cr.P.C. where the Court is squarely guided by the compromise between the parties in respect of offences 'compoundable' within the statutory framework, the extraordinary power enjoined upon a High Court under Section 482 Cr.P.C. or vested in this Court under Article 142 of the Constitution, can be invoked beyond the metes and bounds of Section 320 Cr.P.C. Nonetheless, we reiterate that such powers of wide amplitude ought to be exercised carefully in the context of quashing criminal proceedings, bearing in mind: (i) Nature and effect of the offence on the conscious of the society;

(ii) Seriousness of the injury, if any; (iii) Voluntary nature of compromise between the accused and the victim; and (iv) Conduct of the accused persons, prior to and after the occurrence of the purported offence and/or other relevant considerations.

8. It is further observed in the above decision that, 'criminal proceedings involving non-heinous offences or where the offences are predominantly of a private nature, can be annulled, irrespective of the fact that trial has already been concluded. The cases where compromise is struck post conviction, the High Court ought to exercise such discretion with NC: 2023:KHC:38606 rectitude, keeping in view the circumstances surrounding the incident, passion in which the compromise has been arrived at and with due regard to the nature and seriousness of the offence, besides the conduct of the accused, before and after the incident.'

9. It is well settled that the power conferred under Section 482 of the Code can be exercised to quash the proceedings if the matter is private in nature or arising out of matrimonial relationship or family disputes and when the parties have resolved the entire disputes amongst themselves. The case on hand being one of such cases and in the light of the above referred decision, it is just and proper to allow the appeal, to meet the ends of justice. Accordingly, the following;

ORDER

i. The appeal is allowed.

ii. The judgment and order dated 30.11.2020 passed by the Court of V Additional District and Sessions Judge, Mandya, in CrI.A.No.165/2019, convicting and sentencing the NC: 2023:KHC:38606 appellant / accused No.1 for the offence punishable under Sections 420, 494 and 506 of IPC is hereby set aside.

The appellant is acquitted of the aforementioned offences. His bail bonds are discharged.

Sd/-

JUDGE LDC